

The Bengal Inheritance Regulation, 1800

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The Bengal Inheritance Regulation, 1800

Act 10 of 1800

Published on 11 December 1800

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The Bengal Inheritance Regulation, 1800

(Bengal Regulation 10 of 1800)

[Dated 11th December, 1800]

A Regulation for preventing the division of landed estates in the Jungle Mahals of the Zila of Midnapore and other Districts.

1.

Preamble.

- By Regulation 11, 1793, the estates of proprietors of land dying intestate are declared liable to be divided among the heirs of the deceased agreeably to the Hindu or Muhammadan laws.

A custom, however, having been found to prevail in the Jungle Mahals of Midnapore and other districts, by which the succession to landed estates invariably devolves to a single heir without the division of the property, and this custom

having been long established, and being founded in certain circumstances, of local convenience which still exist, the Governor-General in Council has enacted the following Rule to be in force in the Provinces of [Bengal], Bihar, [and Orissa] from the date of its promulgation.

2.
Regulation 11, 1793, not to operate in jungle mahals of Midnapore and other districts.

- Regulation 11, 1793, shall not be considered to supersede or affect any established usage which may have obtained in the jungle mahals of Midnapore and other districts, by which the succession to landed estates, the proprietor of which may die intestate, has hitherto been considered to devolve to a single heir, to the exclusion of the other heirs of the deceased.

In the mahals in question the local custom of the country shall be continued in full force as heretofore, and the Courts of Justice be guided by it in the decision of all claims which may come before them to the inheritance of landed property situated in those mahals.

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